

AFR

HIGH COURT OF CHHATTISGARH AT BILASPUR**Criminal Appeal No. 403 of 2015**

Pramod @ Bhoko S/o Shri Kishan Gayakwad, Aged about 24 years, R/o Village Girhola, Police Station Nandini Nagar, District Durg, Chhattisgarh.

---Appellant**Versus**

State of Chhattisgarh through Station House Officer, Police Station Nandini, District Durg, Chhattisgarh.

---Respondent

For Appellant	:-	Mr. B.P. Singh with Mr. Sudhanshu Kumar Singh, Advocates
For State	:-	Mr. Ashish Tiwari, G.A.

Hon'ble Shri Justice Sanjay K. Agrawal**Hon'ble Shri Justice Radhakishan Agrawal****Judgment on Board****18/07/2023****Sanjay K. Agrawal, J.**

1. This criminal appeal under Section 374(2) of CrPC has been preferred by the appellant herein against the impugned judgment dated 10/02/2015 passed by learned Additional Sessions Judge, Durg in Special Sessions Trial No. 15/2014 whereby he has been convicted for offence punishable under Section 302 of IPC and has been sentenced to undergo life imprisonment with fine of Rs. 100/- and under Section 4 of

Chhattisgarh Tonhi Pratarna Nivaran Act, 2005 and has been sentenced to undergo R.I. for 3 years with fine of Rs. 100/- and in default of payment of fine, additional R.I. for 10-10 days for both the offences, with a direction to run both the sentences concurrently.

2. Case of the prosecution, in brief, is that on 12/10/2013 in between 8-9 PM at village Girhola within the ambit of Police Station Nandini, the appellant herein along with four other co-accused persons constituted an unlawful assembly armed with deadly weapon like axe with a common object of causing death of Pramila Bai and in furtherance of their common intention, they assaulted Pramila Bai with axe and murdered her on the pretext that she practiced witchcraft and thereby, committed the aforesaid offences.
3. Further case of the prosecution is that all the five accused persons including the appellant suspected that deceased Pramila Bai used to practice witchcraft and she had performed black magic on the appellant as well as on co-accused Kishnu and in furtherance of their common intention, they assaulted Pramila Bai with axe and caused her death on the fateful day. Thereafter, Rajkumar Banjare (P.W.-10) reported about the incident at Police Station Nandini on the basis of which first information report was registered vide Ex. P/25 and merger intimation was registered vide Ex. P/26. Summons were issued to the witnesses vide Ex. P/1 and inquest was conducted vide Ex. P/2. From the spot, plain soil and blood stained soil was recovered vide Ex. P/13 and the slippers worn

by the deceased were seized vide Ex. P/14. The dead body of Pramila Bai was subjected to postmortem which was conducted by Dr. P. Akhtar (P.W.-12) and as per postmortem report (Ex. P/33), cause of death is said to be coma and shock due to head injury. Memorandum statements of the accused persons were recorded vide Ex. P/8 to P/11 and recovery of axe was made from the appellant vide Ex. P/16. The said seized articles were sent for forensic examination and as per the FSL report (Ex. P/35), blood was found on the said axe. After due investigation, the accused persons were charge-sheeted for offences punishable under Sections 148, 302/120B, 302 r/w 149 of IPC and Sections 4 and 5 of Chhattisgarh Tonhi Pratarna Nivaran Act, 2005, which was committed to the Court of Sessions for trial in accordance with law.

4. It is appropriate to mention here that at the time of framing of charge on 03/03/2014, the appellant herein admitted his guilt before the trial Court stating that he has caused the murder of Pramila Bai. Likewise, while giving his statement under Section 313 of CrPC, appellant has also admitted his guilt and stated that he has caused the murder of Pramila Bai in question Nos. 8, 17, 42 and 143. Appellant's admission of guilt in both the aforementioned stages have been taken as a piece of incriminating circumstance by the trial Court while convicting him for the aforesaid offences.
5. In order to bring home the offence, prosecution examined as many as 12 witnesses and brought on record 35 documents.

Neither any witness has been examined on behalf of the defence nor any document has been brought on record.

6. Learned trial Court, after appreciation of oral and documentary evidence on record, though acquitted the four co-accused persons but proceeded to convict the appellant for offence punishable under Section 302 of IPC and Section 4 of Chhattisgarh Tonhi Pratarna Nivaran Act, 2005.
7. Mr. B.P. Singh, learned counsel for the appellant, would submit that the trial Court has erred in convicting the appellant for the aforesaid offences as prosecution has failed to bring home the offence. The trial Court has found memorandum statement (Ex. P/8) of the appellant as well as seizure of axe from him vide Ex. P/16 duly proved, however, the memorandum and seizure witnesses Fakirchand (P.W.-6) and Rajkumar Dewangan (P.W.-8) have turned hostile and have not supported the case of the prosecution. Moreover, though as per FSL report (Ex. P/35), blood has been found on the seized axe but since it could not be ascertained whether it was stained with human blood or not, recovery is of no use to the prosecution in light of the decision rendered by the Supreme Court in the matter of **Balwan Singh v. State of Chhattisgarh**¹ and **Mani v. State of Tamil Nadu**². Moreover, the alleged admission of guilt made by the appellant while answering questions No. 8, 17, 42 and 143 in his statement under Section 313 of CrPC is inadmissible in evidence in view of the fact that there is no evidence brought by the

1 (2019) 7 SCC 781

2 (2009) 17 SCC 273

prosecution to prove the offence against the appellant in light of the decision rendered by the Supreme Court in the matter of **Premchand v. State of Maharashtra**³. Furthermore, the admission of guilt at the time of framing of charge under Section 229 of CrPC by the appellant is inadmissible in evidence because the trial Judge himself did not find it worthy to accept and proceeded to conduct trial on merits, therefore, at the later stage while delivering the judgment, the trial Court could not have convicted the appellant taking his admission of guilt at the time of framing of charge as an incriminating piece of evidence against the appellant, therefore, the instant appeal be allowed and the appellant be acquitted on the basis of principle of benefit of doubt.

8. Per contra, Mr. Ashish Tiwari, learned State counsel would support the impugned judgment and submit that memorandum and seizure witnesses Fakirchand (P.W.-6) and Rajkumar Devangan (P.W.-8) though have not fully supported the case of the prosecution/seizure of the weapon of offence, but Fakirchand (P.W.-6) has clearly stated admitted that memorandum of the appellant has been taken in his presence and therefore, the trial Court has rightly relied upon the memorandum statement (Ex. P/8) made by the appellant which has been proved by the Investigating Officer R.P. Shukla (P.W.-9) and moreover, learned trial Court is also justified in convicting the appellant on the basis of his

³ (2023) 5 SCC 522

admission of guilt in his statement under Section 313 of CrPC, as such, the instant appeal is liable to be dismissed.

9. We have heard learned counsel for the parties, considered their rival submissions made herein-above and went through the records with utmost circumspection.
10. There is no direct evidence available on record and the instant case is based upon circumstantial evidence. The Supreme Court in the matter of **Sharad Birdhichand Sarda v. State of Maharashtra**⁴ has laid down the five golden principles that constitute the panchsheel of the proof of a case based on circumstantial evidence, which state as under :-

“153. A close analysis of this decision would show that the following conditions must be fulfilled before a case against an accused can be said to be fully established :

(1) the circumstances from which the conclusion of guilt is to be drawn should be fully established.

XXX

XXX

XXX

(2) the facts so established should be consistent only with the hypothesis of guilt of the accused, that is to say, they should not be explainable on any other hypothesis except that the accused is guilty,

(3) the circumstances should be of a conclusive nature and tendency,

(4) they should exclude every possible hypothesis except the one to be prove, and

(5) there must be a chain of evidence so complete as not to leave any reasonable ground for the conclusion consistent with the innocence of the accused and must show that in all human probability the act must have been done by the accused.”

4 (1984) 4 SCC 116

11. Learned trial Court has relied upon the following four incriminating circumstances to convict the appellant for the aforesaid offences :-

- i) The death of deceased Pramila Bai is homicidal in nature.
- ii) Appellant used to suspect that deceased practiced witchcraft and that acted as motive of offence.
- iii) Recovery of blood stained axe has been made from the possession of the appellant vide Ex. P/16 on the basis of his memorandum statement (Ex. P/8).
- iv) Appellant had admitted his guilt at the time of framing of charge as well as in his statement under Section 313 of CrPC.

We will consider each of the four incriminating circumstances one-by-one.

i). Nature of death :-

12. Learned trial Court has clearly recorded a finding that the nature of death of deceased Pramila Bai is homicidal in nature relying upon the expert medical opinion of Dr. P. Akhtar (P.W.-12) as well as the postmortem report (Ex. P/33). Considering the nature of injuries suffered by the deceased as well as the considering the statement of Dr. P. Akhtar (P.W.-12) wherein he has clearly stated that deceased died on account of coma and shock due to head injury and the postmortem report (Ex. P/33), we are of the considered opinion that the trial Court has rightly held the death of deceased Pramila Bai to be homicidal in nature. We hereby the said finding recorded by

the trial Court particularly when it has not been seriously questioned by learned counsel for the appellant.

ii). Motive of offence :-

13. It is the case of the prosecution that appellant and other accused persons used to suspect that deceased Pramila Bai used to practice witchcraft and she had performed black magic upon the appellant and co-accused Kishnu and on that account, the accused persons assaulted Pramila Bai with axe and caused her death. The trial Court has found the motive of offence established relying upon the statement of Gujral (P.W.-7). From the perusal of entire evidence available on record, it is evident that except for the statement of Gujral (P.W.-7), no other evidence has been brought on record by the prosecution to hold that appellant had motive to commit the offence in question. The finding of the trial Court is based on suspicion that the appellant suspected that deceased practiced witchcraft, as such, motive of offence cannot be said to be established.

iii) Seizure of blood stained axe from the appellant :-

14. Appellant is said to have given disclosure statement (Ex. P/8) in the presence of two witnesses Fakirchand (P.W.-6) and Rajkumar Devangan (P.W.-8) pursuant to which recovery of axe has been made from the possession of the appellant vide Ex. P/16 and as per the FSL report (Ex. P/35), blood has been found on it.

15. Rajkumar Devangan (P.W.-8) is the first witness of memorandum and seizure and he has turned hostile and has neither supported the memorandum nor the recovery of blood stained axe. However, Fakirchand (P.W.-6), on leading question being asked, has admitted that appellant had given memorandum statement (Ex. P/8) but thereafter, he has completely denied the fact of recovery of blood stained axe from the appellant pursuant to his memorandum statement. As such, both the witnesses do not support the recovery of blood stained axe from the possession of the appellant pursuant to his memorandum statement and even if it is found proved relying upon the statement of Fakirchand (P.W.-6) that appellant has made memorandum statement (Ex. P/8) then too, it has not been proved by the prosecution that the said memorandum statement of the appellant led to the recovery of the blood stained axe. Even otherwise, recovery is a weak piece of evidence and cannot be made a basis of conviction in absence of other corroborative evidence.
16. In the matter of **Mani** (supra), considering the nature, scope and applicability of Section 27 of the Indian Evidence Act, 1872, their Lordships of the Supreme Court have held that discovery is a weak kind of evidence and cannot be wholly relied upon and has observed the following in paragraph 26 of the judgment :-

“26. The discovery is a weak kind of evidence and cannot be wholly relied upon and conviction in such a serious matter cannot be based upon the discovery. Once the discovery fails, there would be literally nothing which would support the prosecution case. We

have already held that the prosecution has failed to prove that the house where alleged bloodstains were found belonged exclusively or was possessed exclusively by the appellant, we have further pointed out that the discovery was absolutely farcical. There is one other very relevant factor ignored by both the courts that the prosecution never made any attempts to prove that the clothes belonged to the appellants. There is literally no evidence to suggest anything to that effect. Therefore, even if we accept the discovery, it does not take us anywhere near the crime. Both the courts below have ignored this very important aspect. Once these two important circumstances are disbelieved, there is nothing which would remain to support the prosecution theory.”

17. Furthermore, though as per the FSL report (Ex. P/35), blood is said to have been found on the seized axe, however, it could not have been ascertained whether it was stained with human blood much less the blood group.

18. The Supreme Court in the matter of **Balwan Singh** (supra) has held that if the recovery of bloodstained articles is proved beyond reasonable doubt by the prosecution, and if the investigation is found to be tainted, then it may be sufficient if the prosecution shows that the blood found on the articles is of human origin though, even though the blood group is not proved because of disintegration of blood and observed in paragraph 24 as under :-

“24. In the instant case, then, we could have placed some reliance on the recovery, had the prosecution at least proved that the blood was of human origin. As observed supra, while discussing the evidence of PWs 9 and 16, the prosecution has tried to concoct the case from stage to stage. Hence, in the absence of positive material indicating that the stained blood was of human origin and of the same blood group as that of the accused, it would be difficult for the Court to rely upon the aspect of recovery of the weapons and tabbal, and such recovery does not help the case of the prosecution.”

19. Thus, in view of the aforesaid legal discussion in light of the principle of law laid down by their Lordships of the Supreme Court in **Balwan Singh** (supra) and **Mani** (supra), it is quite clear that recovery of the axe allegedly made from the possession of the appellant vide Ex. P/16 is of no use to the prosecution as it has neither been proved by the seizure witnesses nor human blood has been found on it as per the FSL report (Ex. P/35). As such, the trial Court is absolutely unjustified in relying upon this incriminating circumstance to convict the appellant.

iv) Admission of guilt by the appellant :-

20. The appellant is said to have admitted his guilt and stated that he has committed the murder of deceased Pramila Bai at two stages, firstly, at the time of framing of charge on 03/02/2014 and secondly, while answering questions No. 8, 17, 42 and 143 in his statement under Section 313 of CrPC. We will consider the admission of guilt made by the appellant at both of these stages separately.

a). Admission of guilt at the time of framing of charge :-

21. Admittedly, on 03/02/2014, at the time of framing charge, appellant admitted the following fact :-

"आरोपी को उपरोक्त आरोप पढ़कर सुनाए व समझाए जाने पर आरोपी कथन करता है की - मैंने ही दिनांक 12-13/10/13 की दरम्यानी रात, परमिला बाई को टंगिया से मारकर उसकी हत्या किया है | मेरे साथ और कोई नहीं था | मैंने उक्त बात को पुलिस थाना नंदिनी में समर्पण करते समय एवं मिडिया के सामने भी बताया था, मुझे जुर्म स्वीकार है |"

22. At this stage, it would be appropriate to notice the provision contained under Section 229 of CrPC, which provides as under :-

“229. Conviction on plea of guilty. - If the accused pleads guilty, the Judge shall record the plea and may, in his discretion, convict him thereupon.”

23. A careful perusal of Section 229 of CrPC would show that it provides for conviction on the plea of guilty. It provides that if the accused pleads guilty, the Judge shall record the plea and may, in his discretion, convict him therein. As such, it is not obligatory on the Court to convict the accused on his plea of guilty but discretion has been left with the Court to convict him thereon as the trial Court is conferred with discretion either to convict the accused or proceed with trial and record the evidence of prosecution witnesses in accordance with Section 230 of CrPC.

24. It is well settled by the decisions of various High Courts that the Court should not primarily act upon the plea of guilty in serious offences like murder but should proceed to take the evidence as if the plea had been one of not guilty and should decide the case upon the whole evidence including the accused plea. However, there is no absolute bar under law in acting upon the plea of accused if the facts and circumstances of the case are so justified provided that if the Court takes all the necessary caution and circumspection before accepting and acting upon the plea of guilty.

25. Their Lordships of the Supreme Court in the matter of **State of Maharashtra v. Sukhdev Singh**⁵ have held that on the accused pleading guilty, conviction cannot be founded upon confession/admission of guilt made by the accused at any stage of the trial including the stage of making statement under section 313 of CrPC and that while acting upon the plea of guilt of the accused, the court must approach with caution and circumspection to ensure that the plea is clear and unqualified and the admission of the facts constitutes the offences, etc.
26. The American Supreme Court in the matter of **Robert J. Henderson v. Timothy G. Morgan**⁶ held that a plea of guilty to a charge of second degree murder cannot support a judgment guilt unless it is voluntary in a constitutional sense and clearly the plea cannot be said to be voluntary in the sense that it constituted an intelligent admission that he committed the offence unless the defendant (accused) receives real notice of the true nature of the charge against him, the first and most universally recognized requirement of due process. If the defendant is not informed that intent to cause death of the person killed was an element of the offence charged against him his plea of guilty cannot be said to be voluntary and the judgment of conviction in such a case is entered without due process to law.
27. Returning to the facts of the present case in light of the decisions rendered by the Supreme Court in the matter of

⁵ (1992) 3 SCC 700

⁶ 1977 CrLJ 738 : 1977-49 L. Ed. 2d 108

Sukhdev Singh (supra), it is vividly clear that there is no absolute bar on the Courts to convict the accused on his plea of guilty and the Court must take care necessary steps to ensure that the plea of guilty is voluntary and clear and the accused understands the nature of offence with which he is charged. In the instant case, appellant has only admitted that he has killed Pramila Bai with axe. The plea of guilty only at the best would amount to an admission that accused committed the acts alleged against him and not on admission of the guilt against a particular provision of IPC. There is no indication from the material available on record that the trial Judge made him understand and he had permitted the accused not to plead guilty for the charge which is framed against him and it is also nowhere apparent from the charge dated 03/02/2014 that the appellant was made to understand the consequences relating to the charge framed against him and whether the plea of guilty was true and voluntary or the appellant was forced to plead guilty by the rest of the accused persons who were the members of his family. Nothing has been brought on record that even a slightest endeavour was made by the trial Court to ensure that the appellant was informed about the ingredients constituting the offence of murder. Furthermore, the trial Court himself thought it expedient not to rely upon the plea of guilty made by the appellant on 03/02/2014 and proceeded to conduct trial on merits and thereafter, at a later stage, while delivering final judgment, the trial Court could not have accepted the plea of

guilty made by the appellant at the time of framing of charge on 03/02/2014 without assigning any reason whatsoever for convicting him for a serious offence like murder. Accordingly, we reject the alleged admission of the appellant recorded by the trial Court on the basis of his plea of guilty at the time of framing charge on 03/02/2014.

b). Admission of guilt in statement under Section 313 of CrPC :-

28. The question for consideration would be, whether the admission of guilt by the appellant in his examination under Section 313 of CrPC constitutes substantive evidence within the meaning of Section 3 of the Evidence Act ?
29. The Supreme Court in the matter of **Raj Kumar Singh alias Raju alias Batya v. State of Rajasthan**⁷ has clearly held that the statement made under Section 313 of the CrPC cannot be made basis for conviction as it is not subjected to oath and it cannot be treated as evidence within the meaning of Section 3 of the Evidence Act, and observed as under in paragraph 36: -

“36. In view of the above, the law on the issue can be summarised to the effect that statement under Section 313 Cr.P.C. is recorded to meet the requirement of the principles of natural justice as it requires that an accused may be given an opportunity to furnish explanation of the incriminating material which had come against him in the trial. However, his statement cannot be made a basis for his conviction. His answers to the questions put to him under Section 313 Cr.P.C. cannot be used to fill up the gaps left by the prosecution witnesses in their depositions. Thus, the statement of the accused is not a substantive piece of evidence and therefore, it can be used only for

⁷ AIR 2013 SC 3150

appreciating the evidence led by the prosecution, though it cannot be a substitute for the evidence of the prosecution. In case the prosecution's evidence is not found sufficient to sustain conviction of the accused, the inculpatory part of his statement cannot be made the sole basis of his conviction. The statement under Section 313 Cr.P.C. is not recorded after administering oath to the accused. Therefore, it cannot be treated as an evidence within the meaning of Section 3 of the Evidence Act, though the accused has a right if he chooses to be a witness, and once he makes that option, he can be administered oath and examined as a witness in defence as required under Section 315 Cr.P.C.

An adverse inference can be taken against the accused only and only if the incriminating material stood fully established and the accused is not able to furnish any explanation for the same. However, the accused has a right to remain silent as he cannot be forced to become witness against himself.”

30. Similarly, in the matter of **Dehal Singh v. State of Himachal Pradesh**⁸, it has been held that statement of accused under Section 313 of the CrPC is not an evidence and the said statement cannot be treated as evidence within the meaning of Section 3 of the Evidence Act, and observed as under in paragraph 23: -

“23. Statement under Section 313 of the Code of Criminal Procedure is taken into consideration to appreciate the truthfulness or otherwise of the case of prosecution and it is not an evidence. Statement of an accused under Section 313 of the Code of Criminal Procedure is recorded without administering oath and, therefore, said statement cannot be treated as evidence within the meaning of Section 3 of the Evidence Act. The appellants have not chosen to examine any other witness to support this plea and in case none was available they were free to examine themselves in terms of Section 315 of the Code of Criminal Procedure which, inter alia, provides that a

person accused of an offence is a competent witness of the defence and may give evidence on oath in disproof of the charges. There is reason not to treat the statement under Section 313 of the Code of Criminal Procedure as evidence as the accused cannot be cross-examined with reference to those statements. However, when an accused appears as witness in defence to disprove the charge, his version can be tested by his cross-examination. Therefore, in our opinion the plea of the appellant Dinesh Kumar that he had taken lift in the car is not fit to be accepted only on the basis of the statements of the appellants under Section 313 of the Code of Criminal Procedure.”

31. In the matter of **Ashok Debbarma alias Achak Debbarma v. State of Tripura**⁹, relying upon the matter of **Mohan Singh v. Prem Singh**¹⁰, it has been held that the statement made in defence by the accused under Section 313 of the CrPC can certainly be taken aid of to lend credence to the evidence led by the prosecution, but only a part of such statement under Section 313 of the CrPC cannot be made the sole basis of his conviction, and observed in paragraphs 24 and 25 as under: -

“24. We are of the view that, under Section 313 statement, if the accused admits that from the evidence of various witnesses, four persons sustained severe bullet injuries by the firing by the accused and his associates, that admission of guilt in Section 313 statement cannot be brushed aside. This Court in *State of Maharashtra v. Sukhdev Singh*¹¹ held that since no oath is administered to the accused, the statement made by the accused under Section 313 CrPC will not be evidence *stricto sensu* and the accused, of course, shall not render himself liable to punishment merely on the basis of answers given while he was being examined under Section 313 CrPC. But, sub-section (4) says that the answers given by the accused in response to his examination under Section 313 CrPC can be taken into consideration in

9 (2014) 4 SCC 747

10 (2002) 10 SCC 236

11 (1992) 3 SCC 700

such an inquiry or trial. This Court in *Hate Singh Bhagat Singh*¹² held that the answers given by the accused under Section 313 examination can be used for proving his guilt as much as the evidence given by the prosecution witness. In *Narain Singh v. State of Punjab*¹³ this Court held that when the accused confesses to the commission of the offence with which he is charged, the Court may rely upon the confession and proceed to convict him.

25. This Court in *Mohan Singh v. Prem Singh*¹² held that: (SCC p. 244, para 27)

“27. The statement made in defence by the accused under Section 313 CrPC can certainly be taken aid of to lend credence to the evidence led by the prosecution, but only a part of such statement under Section 313 CrPC cannot be made the sole basis of his conviction.”

In this connection, reference may also be made to the judgments of this Court in *Devender Kumar Singla v. Baldev Krishan Singla*¹⁴ and *Bishnu Prasad Sinha v. State of Assam*¹⁵. The abovementioned decisions would indicate that the statement of the accused under Section 313 CrPC for the admission of his guilt or confession as such cannot be made the sole basis for finding the accused guilty, the reason being he is not making the statement on oath, but all the same the confession or admission of guilt can be taken as a piece of evidence since the same lends credence to the evidence led by the prosecution.”

32. Very recently, in **Premchand** (supra), Dipankar Datta, J. speaking for the Supreme Court has clearly held that the explanation furnished by the accused cannot be considered in isolation but has to be considered in conjunction with the evidence adduced by the prosecution and, therefore, no conviction can be premised solely on the basis of the section 313 statement(s) and statements of the accused in course of

12 *Hate Singh Bhagat Singh v. State of Madhya Bharat*, AIR 1953 SC 468

13 (1964) 1 Cri LJ 730

14 (2005) 9 SCC 15

15 (2007) 11 SCC 467

examination under Section 313 do not constitute evidence under Section 3 of the Evidence Act, and observed in paragraphs 14 and 15 as under: -

“14. A bench of three Hon’ble Judges of this Court in *State of U.P. vs Lakhmi*¹⁶ has extensively dealt with the aspect of value or utility of a statement under section 313, Cr. P.C. The object of section 313, Cr. P.C. was explained by this Court in *Sanatan Naskar vs. State of West Bengal*¹⁷. The rationale behind the requirement to comply with section 313, Cr. P.C. was adverted to by this Court in *Reena Hazarika vs. State of Assam*¹⁸. Close on the heels thereof, in *Parminder Kaur vs. State of Punjab*¹⁹, this Court restated the importance of section 313, Cr. P.C. upon noticing the view taken in *Reena Hazarika* (supra) and *M. Abbas vs. State of Kerala*²⁰.

15. What follows from these authorities may briefly be summarized thus:

- a. section 313, Cr. P.C. [clause (b) of sub-section 1] is a valuable safeguard in the trial process for the accused to establish his innocence;
- b. section 313, which is intended to ensure a direct dialogue between the court and the accused, casts a mandatory duty on the court to question the accused generally on the case for the purpose of enabling him to personally explain any circumstances appearing in the evidence against him;
- c. when questioned, the accused may not admit his involvement at all and choose to flatly deny or outrightly repudiate whatever is put to him by the court;
- d. the accused may even admit or own incriminating circumstances adduced against him to adopt legally recognized defences;

16 (1998) 4 SCC 336

17 (2010) 8 SCC 249

18 (2019) 13 SCC 289

19 (2020) 8 SCC 811

20 (2001) 10 SCC 103

e. an accused can make a statement without fear of being cross-examined by the prosecution or the latter having any right to cross-examine him;

f. the explanations that an accused may furnish cannot be considered in isolation but has to be considered in conjunction with the evidence adduced by the prosecution and, therefore, no conviction can be premised solely on the basis of the section 313 statement(s);

g. statements of the accused in course of examination under section 313, since not on oath, do not constitute evidence under section 3 of the Evidence Act, yet, the answers given are relevant for finding the truth and examining the veracity of the prosecution case;

h. statement(s) of the accused cannot be dissected to rely on the inculpatory part and ignore the exculpatory part and has/have to be read in the whole, inter alia, to test the authenticity of the exculpatory nature of admission; and

i. if the accused takes a defence and proffers any alternate version of events or interpretation, the court has to carefully analyze and consider his statements;

j. any failure to consider the accused's explanation of incriminating circumstances, in a given case, may vitiate the trial and/or endanger the conviction."

33. Reverting to the facts of the present case in light of the principle of law laid down by their Lordships of the Supreme Court in the aforesaid judgments (supra), it is quite vivid that in the instant case it has already been held by us in the preceding paragraphs that there is no other incriminating circumstance that has been found proved against the appellant and in **Premchand** (supra), their Lordships of the Supreme Court have held that the explanations that an accused may furnish cannot be considered in isolation but

has to be considered in conjunction with the evidence adduced by the prosecution and, therefore, no conviction can be premised solely on the basis of the section 313 CrPC statement and since there is no other evidence that has been established by the prosecution, therefore, conviction of the appellant only on the basis of his admission of guilt in his statement under Section 313 CrPC while answering questions No. 8, 17, 42 and 143 cannot be sustained.

Conclusion :-

34. In view of the aforesaid legal discussion, we are of the considered opinion that the trial Court has erred in convicting the appellant as prosecution has miserably failed to connect the appellant with the offence in question and prove the offence beyond reasonable doubt. The impugned judgment of conviction and sentence recorded against the appellant by the trial Court is hereby set aside and he is acquitted on the basis of principle of benefit of doubt. He be released forthwith, if his detention is not required in any other case.

35. Accordingly, this criminal appeal stands allowed.

36. Let a certified copy of this judgment be sent to the trial Court concerned as well as the jail authorities for information and compliance.

Sd/-
(Sanjay K. Agrawal)
Judge

Sd/-
(Radhakishan Agrawal)
Judge